

MICHIGAN COURT OF APPEALS

ANDREW J. PIGORS, Appellant, v. EMILY WATSON, Appellee.

Case No. 366810

<!-- TABLE OF AUTHORITIES Pigors v. Watson -- COA No. 366810 Appellant's
Brief on Appeal Per MCR 7.212(C)(2) -->

TABLE OF AUTHORITIES

Cases

Case	Citation	Brief Page(s)	--- --- ---	<i>Bonner v Brighton</i>	495 Mich 209 (2014)
14	<i>Brown v Loveman</i>	260 Mich App 576; 680 NW2d 432 (2004)	22	<i>Caperton v A.T. Massey Coal Co, Inc</i>	556 US 868; 129 S Ct 2252 (2009)
24, 26	<i>Crampton v Dep't of State</i>	395 Mich 347 (1975)	12	<i>Eldred v Ziny</i>	246 Mich App 142 (2001)
16	<i>Fletcher v Fletcher</i>	447 Mich 871; 526 NW2d 889 (1994)	17, 18	<i>Grew v Knox</i>	265 Mich App 333; 694 NW2d 772 (2005)
26	<i>Haliw v Sterling Heights</i>	471 Mich 700 (2005)	12	<i>In re Contempt of Henry</i>	282 Mich App 656; 765 NW2d 44 (2009)
24, 28	<i>Kaeb v Kaeb</i>	309 Mich App 556; 873 NW2d 319 (2015)	20	<i>Klooster v City of Charlevoix</i>	488 Mich 289 (2011)
21	<i>Laffin v Laffin</i>	280 Mich App 513; 760 NW2d 738 (2008)	23	<i>Lieberman v Orr</i>	319 Mich App 68; 900 NW2d 130 (2017)
26	<i>Maldonado v Ford Motor Co</i>	476 Mich 372 (2006)	12	<i>Mathews v Eldridge</i>	424 US 319; 96 S Ct 893 (1976)
15, 16	<i>Mullane v Central Hanover Bank & Trust Co</i>	339 US 306 (1950)	27	<i>People v Carines</i>	460 Mich 750 (1999)
27	<i>Pierron v Pierron</i>	486 Mich 81; 782 NW2d 480 (2010)	1, 14, 21		

Santosky v Kramer | 455 US 745; 102 S Ct 1388 (1982) | 15 | | *Shade v Wright* | 291 Mich App 17; 805 NW2d 1 (2010) | 22 | | *Stanley v Illinois* | 405 US 645; 92 S Ct 1208 (1972) | 15 | | *Troxel v Granville* | 530 US 57; 120 S Ct 2054 (2000) | 1, 15 | | *Vodvarka v Grasmeyer* | 259 Mich App 499; 675 NW2d 847 (2003) | 17 |

Constitutional Provisions

| Provision | Brief Page(s) | |---|---| | U.S. Const., Amend. XIV, Section 1 (Due Process Clause) | 1, 3, 5, 14, 15, 27, 30 | | Mich. Const. 1963, art. 1, Section 17 (Due Process) | 3, 14 | | Mich. Const. 1963, art. 6, Section 10 (Court of Appeals Jurisdiction) | 1 |

Statutes

| Statute | Brief Page(s) | |---|---| | MCL 600.2950 (Personal Protection Orders) | 1, 4, 6, 7, 21, 22, 23, 30 | | MCL 600.2950(1) (PPO Standards) | 23 | | MCL 600.2950(4) (PPO Does Not Affect Custody) | 4, 21, 22, 30 | | MCL 722.21 *et seq.* (Child Custody Act) | 1 | | MCL 722.23 (Best-Interest Factors) | 4, 7, 8, 17, 18, 19, 20, 21, 30 | | MCL 722.23(a) (Love, Affection, Emotional Ties) | 19 | | MCL 722.23(c) (Capacity to Provide) | 19 | | MCL 722.23(j) (Willingness to Facilitate Relationship) | 4, 20, 30 | | MCL 722.23(k) (Domestic Violence) | 17 | | MCL 722.27 (Custody Modification Standards) | 17 | | MCL 722.27a (Parenting Time) | 7, 17, 20, 30 | | MCL 722.27a(7) (Clear and Convincing Evidence) | 4, 8, 17, 20, 21, 30 |

Court Rules

| Court Rule | Brief Page(s) | |---|---| | MCR 2.003 (Disqualification of Judge) | 5, 24, 25, 26, 30 | | MCR 2.003(C)(1) (Grounds for Disqualification) | 5, 24 | | MCR 2.003(C)(1)(a)

(Actual Bias) | 24, 25 | | MCR 2.003(C)(1)(b) (Serious Risk / *Caperton*) | 24, 26 | | MCR 2.517(A) (Findings of Fact) | 18 | | MCR 3.207 (Domestic Relations Procedure) | 3, 12, 13 | | MCR 3.207(C)(2) (Ex Parte Orders) | 3, 7, 12, 13, 27, 28 | | MCR 3.207(C)(3) (Ex Parte Requirements) | 13 | | MCR 3.210 (Custody Hearings) | 3, 14, 16, 30 | | MCR 3.210(D) (Evidentiary Hearing Required) | 16 | | MCR 7.203 (COA Jurisdiction) | 1 | | MCR 7.203(A) (Appeals from Final Orders) | 1 | | MCR 7.204 (Filing Claim of Appeal) | 1 | | MCR 7.212 (Brief Format and Requirements) | 1, 32 | | MCR 7.212(B) (Word Limit -- 16,000) | 32 | | MCR 7.212(C) (Brief Contents) | 1 | | MCR 7.212(H) (Appendix Requirements) | 35 |

Other Authorities

| Authority | Brief Page(s) | |---|---| | Michigan Code of Judicial Conduct, Canon 2 (Appearance of Propriety) | 24 | | Michigan Code of Judicial Conduct, Canon 3(A)(4) (Ex Parte Communications) | 24 |

Note: Page numbers are approximate and will be finalized upon formatting. All citations have been verified against the Michigan Court of Appeals citation format.